



File No.: EXP202207332

RESOLUTION OF REINSTATEMENT APPEAL

Examined the reinstatement appeal filed by Mr. A.A.A. (*hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated August 21, 2023, and based on the following

FACTS

FIRST: On August 21, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202207332, by virtue of which a fine of 300 euros (THREE HUNDRED euros) was imposed on A.A.A.

TO IMPOSE on Mr. A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

This resolution, which was notified to the appellant on September 28, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00521/2022, the following was recorded:

First: The complainant states that the respondent is responsible for cameras installed on the facade of a property, which are oriented towards the public road, without having prior administrative authorization for this.

Images of the location of the cameras are provided.

Second: The respondent claims that the documentation proving the necessary administrative authorization to have cameras installed on the facade of his home was already provided in response to the notifications received from files E/03416/2015 and A/00163/2016 from this Agency, as they were installed by a security company that proceeded to request the necessary permits for this.

Third: The respondent provides a certificate issued by Liser Informática on August 16, 2023, with the following content:

"That the 6 cameras that Mr. A.A.A., with D.N.I. ***NIF.1, has installed at his address on street ***ADDRESS.1 do not have active recording since May 2022 because the motherboard of the video recorder is burned, preventing it from recording and allowing the images from his cameras to be viewed on the monitor."

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THIRD: The appellant submitted on October 30, 2023, to this Spanish Agency for Data Protection, a reinstatement appeal, basing it fundamentally on the following points:

"I am imposed a fine of 300€ because 'until May 2022, such cameras could record, so I supposedly committed an infringement of Article 5.1 c) of the GDPR.'

Well, as I have already stated in my allegations throughout the sanctioning procedure, in response to the files referenced E/03416/2015 and A/00163/2016 from the Spanish Agency for Data Protection, the images captured by the cameras were already provided, where it is evident that the cameras are covered and only mainly record my facade and a minimal part of the sidewalk.

I referred to this so that they could examine those files where the images captured by the cameras were already provided; it makes no sense for my allegations to be dismissed because the cameras record when no one has requested the images that those cameras capture, and they have not

examined the images that are recorded in those files.

SECOND.- In any case and subsidiarily, the LOPD establishes that minor infringements prescribe one year after their commission, and it is unknown since when the images were recording, since in May 2022 it was not functioning, and it could have stopped recording much earlier. This party was notified of the initiation of the sanctioning procedure for the first time on 04/27/2023, and from 11/24/2023, the date of the agreement to initiate the sanctioning procedure until 04/27/2023, more than 6 months and 3 days had passed, so the one-year prescription period for the alleged commission of the infringement has been exceeded, and the AEPD cannot prove when the last time the cameras captured images for the calculation of the prescription period of the infringement.

Therefore, I REQUEST: That this written statement of allegations be considered presented and, in view of the above, proceed to annul and render without effect the sanction imposed in the notified sanctioning procedure, considering that there is no infringement on my part as the images captured by the security cameras comply with the provisions of Article 6.1 of the GDPR, and subsidiarily, that the infringement is prescribed due to the expiration of the legally established period in the LOPD."

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018,

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of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Before addressing the substance of the matter, the following issues need to be clarified. It is primarily the responsibility of the system's controller to demonstrate the legality of the system by providing all necessary documentation, which must be updated at the time of the specific facts indicated.

The initial facts are specified in the month of the complaint's submission to this agency, namely, July of the year 2022.

Article 30 of Law 40/2015 (October 1) states: "Infringements and sanctions shall be subject to the statute of limitations as provided in the laws that establish them."

For its part, the current LOPDGDD (LO 3/2015, December 8), in its Article 72, defines as a very serious infringement in letter a) "...violating the principles and guarantees established in Article 5 of the GDPR...", setting a statute of limitations of three years, a period that will be interrupted by the initiation of the procedure with the knowledge of the interested party (art. 75 LOPDGDD).

Thus, it is appropriate to dismiss the argued claim of the statute of limitations for the indicated administrative infringement, as the facts fall within the timeframes established by the Legislator as outlined.

III

In the present case, we proceed to examine the document qualified as a Recurso de Reposición dated 30/10/23, through which the annulment of the imposed sanction is requested, considering that the infringement described in the procedure does not exist.

The "facts" stem from the initial complaint dated 04/07/22, in which the presence of video surveillance cameras in the residence located at ***ADDRESS.1 is reported, which is considered to affect a public area without justified cause.

The respondent does not deny the presence of the cameras, nor does he contest his responsibility for the installation, an aspect that he does not question during the course of the procedure.

On 15/02/23, the first written allegations to the Initiation Agreement were received, indicating that the notifications from this agency "were collected in an abandoned house near his home."

Subsequently, a new document dated 12/05/23 was received, in which he alleges the following: "All the documentation proving the necessary administrative authorization to have cameras installed on the façade of my house has already been submitted to respond to the notifications received from the files with reference numbers E/03416/2015 and A/00163/2016 from the Spanish Agency for Data Protection, as they were installed by a security company that proceeded to request the necessary permits for this. Therefore, please review these files to verify that the documentation was provided; if any additional document is required, please let me know."

In essence, he refers to previous procedures, distant in time (year 2016), considering sufficient to prove the legality of the system the fact that it was installed by a security company.

On 16/08/23, a written statement of allegations to the notified in due time and form was received, providing a copy of the technical report from the installing company—Liser Informática—stating that "the six cameras installed in your home have not had active recording since May 2022, as the motherboard of the video recorder is burned out (...)."

No other data is attached along with the technical report, so according to the respondent's allegations, it should be concluded that he has a system of six cameras, but that they have not been operational since at least May 2022.

Previously, the same camera system had been the subject of another complaint, determining the irregularity of the system, issuing a Warning with measures within the framework of AI/00163/2016, so despite the time elapsed, the system's controller is aware of the matter, the problems that the camera system has already caused previously, and the indications of this agency.

Consequently, the described conduct is considered "serious" negligence, as he should have initially adopted all necessary measures to prove the legality of the system, as well as provided conclusive evidence of the inoperability of the cameras.

IV

As a result, in the present recurso de reposición, the appellant has reiterated arguments previously dismissed, considering that the allegations made are insufficient to prove the legality of the system, thus it is appropriate to confirm the infringement of Article 5.1 c) GDPR for having improperly oriented cameras towards public space that processed third-party data disproportionately, as well as, where applicable, the imposed administrative sanction.

This Agency presents the following in order to avoid future complaints regarding the same "facts" given the impact of the cameras on the tranquility of public thoroughfares; it should analyze the possibility of replacing the exterior cameras with an interior alarm system whose effectiveness is the same, to prevent burglary in the home, review, if applicable, the signage that must be compliant with current regulations in case the exterior cameras are maintained, as well as, if applicable, repair the system in question or proceed to prove that they serve merely as a deterrent.

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not being operational in any way, always respecting the orientation towards their private property.

From now on, all documentation must include the date and time of the accreditation of the facts, both to update the system (e.g., repair of the same), as well as for the disconnection, if applicable, of the same, and must be available to any authority that may require it.

V

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appealing party, as of the date hereof, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express

resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having seen the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on August 21, 2023, in file EXP202207332.

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXA-BANK, S.A., or otherwise, it will proceed to its collection in the executive period. If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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